

Goa, Daman And Diu Members of Legislative Assembly (Removal of Disqualification) Act, 1982

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[Act 1 of 1982](#)

[Published on 19 February 1982](#)

[Commenced on 19 February 1982](#)

[\[This is the version of this document from 19 February 1982.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[Goa, Daman And Diu Members of Legislative Assembly \(Removal of Disqualification\) Act, 1982](#)

[\(Act](#)

[No. 1 of 1982](#)

[\)](#)

[Last Updated 18th January, 2020](#)

[\[Dated 19.02.1982\]](#)

An Act to provide for the removal of certain disqualifications for being chosen as, and for being, a member of the Legislative Assembly of Goa, Daman and Diu.

Be it enacted by the Legislative Assembly of Goa, Daman and Diu in the Thirty-second Year of the Republic of India as

follows:-

1.

Short title and commencement.

(1)

This Act may be called the Goa, Daman and Diu Members of Legislative Assembly (Removal of Disqualification) Act, 1982.

(2)

It shall come into force at once.

2.

Removal of certain disqualifications.

- A person shall not be disqualified for being chosen as, or for being, a member of Legislative Assembly of Goa, Daman and Diu merely by reason of the fact that he holds any of the offices specified in the Schedule appended to this Act.

[Schedule]

[Substituted by the Goa, Daman and Diu Members of Legislative Assembly (Removal of Disqualification) Amendment Act, 1985 (Act No. 11 of 1985), section 2.]

1. The office of a member of a Home Guard constituted under any law for the time being in force in any State;

2. Any office in connection with the affairs of the Goa University or any committee, council or body connected with the Goa University;

3.

The office of Chairman, Economic Development Corporation, Goa, Daman and Diu;

4.

The office of Chairman, Kadamba Transport Corporation Limited;

5.

The office of Chairman, Goa, Daman and Diu Housing Board;

6.

The office of Chairman, Goa, Daman and Diu Tourism Development Corporation Limited;

7.

The office of Chairman, Goa, Handicrafts Rural and Small Scale Industries Corporation Limited;

8.

The office of Chairman, Goa, Daman and Diu Industrial Development Corporation;

9.

The office of Chairman, Director or member of a statutory or non-statutory body or committee or corporation constituted by the Government of Goa, Daman and Diu:

Provided that the Chairman, Director or member of any of the aforesaid committees or bodies or corporations is not entitled to any remuneration other than compensatory allowance.

Explanation. - For the purpose of the aforesaid entries-

(i)

"Compensatory allowance" means any sum of money payable to the holder of an office by way of daily allowance [such allowance not exceeding the amount of daily allowance to which a member of the Legislative Assembly is entitled under the Goa, Daman and Diu Salary, Allowances and Pension of the Members of the Legislative Assembly Act, 1964 (2 of 1965)], any conveyance allowance, house rent allowance or travelling allowance for the purpose of enabling him to recoup any expenditure incurred by him in performing the functions of that office;

(ii)

"statutory body" means any corporation committee, commission, council, board or other body of persons, whether incorporated or not, established by or under any law for the time being in force;

(iii)

"non-statutory body" means any body of persons other than a statutory body.

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